

05-08-2023

DHR – NUH

JDR 2 & 4 – In person

JDR 1(a to Counsel) & 3- Absent

- For orders

ORDER

This execution petition filed by the Decree Holder to enforce the compromised decree passed in O.S.No.2131/2011 dated 12/3/2022. As per the terms of compromise, the parties agreed to cancel the registered sale deed dated 14/3/2011 bearing No.08700/2010 -11 recorded in CD No.BSKD104 in the Sub Registrar of Banshankari and cancellation of sale deed dated 14/3/2011 bearing No. 8698/2010- 11 recorded in CD No.104 in the Office of the Sub Registrar, Banashankari.

2. The Decree Holder also produced certified copy of the compromised petition and certified copy of the order sheet dated 12/3/2022 which clearly reveals that, the parties in the suit entered into a compromise and agreed for the decree of the suit as per the terms of compromise petition. In the compromise petition dated 12/3/2022, the parties have clearly admitted to cancel the aforesaid sale deeds. Accordingly the court passed order stating that the suit is decreed as per the terms of compromise. The court has also drawn the decree accordingly.

3. There is no material on record to show that the said judgment and decree has been challenged or set aside

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or modified. Hence, it has to be accepted that the compromise decree has attained the finality. Hence, this execution petition to be allowed in directing the Sub Registrar to cancel the above said sale deeds. Hence the following:

ORDERS

The Senior Sub Registrar of Banashankari is hereby directed to cancel the two sale deeds dated 14/3/2011 bearing No. 08700/2010 -11 recorded in CD No.BSKD104 in the Sub Registrar of Banashankari and sale deed dated 14/3/2011 bearing No. 8698/2010-11 recorded in CD No.104 in the Office of the Sub Registrar, Banashankari after collecting necessary stamp duty or charges in accordance with law.

Office to issue necessary intimation to the concerned sub registrar along with original sale deed produced in OS No. 2131/2011 for necessary endorsement.

The Decree Holder is also liable to pay the required stamp duty or charges required for the cancellation of aforesaid two sale deeds.

(PADMA PRASAD)
XVIII Additional City Civil Judge,
Bengaluru.

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